

LARAMIE COUNTY COMMUNITY PARTNERSHIP, INC.

&

CHEYENNE OFFICE OF YOUTH ALTERNATIVES

CONTRACT FOR SERVICES
21ST CENTURY COMMUNITY LEARNING CENTERS
COHORT 5
CFD #84.287C.

THIS CONTRACT is made and entered into this first day of January 2013, by and between Laramie County Community Partnership, Inc. (hereinafter referred to as "LCCP"), 910 Central Avenue, Cheyenne, Wyoming, and the City of Cheyenne Office of Youth Alternatives, 1328 Talbot Court, Cheyenne, Wyoming (hereinafter referred to as "City").

WITNESS:

WHEREAS LCCP desires to enter into a Contract with the City to purchase services to be provided by the City pursuant to the terms and conditions of this Contract; and

WHEREAS THE PAYMENT obligations of LCCP under this Contract are contingent upon receipt by LCCP of 21st Century Community Learning Centers (hereinafter referred to as "21CCLC") Cohort Five (5) grant funds, CFD #84.287C, from the Wyoming Department of Education (hereinafter referred to as "Department").

NOW THEREFORE:

1. THE CITY hereby agrees to:
 - a. Provide a range of academic and other enrichment activities to at-risk school-age youth at Laramie County School District #1, Carey Junior High, 1780 East Pershing Boulevard, Cheyenne, Wyoming and their families outside the regular school day and during periods when school is not in session as described in the *2012 21CCLC Work Plan & Budget (Attachment A)* to be attached to this Contract for Services upon approval from Department.

- b. Maintain financial accounting records and documents in accordance with *Generally Accepted Account Principles (GAAP)*, federal regulations and provide financial reports as may be requested by LCCP. Additional required procedures are attached to this document as *Attachment B*.
- c. Submit reports to LCCP as required by the Department no later than ten (10) days before reports are due.
- d. Submit to LCCP no later than April 4, 2013 baseline information required to meet the United States' Department of Education's Learning Point annual reporting requirements. Completed process information forms and scannable Teacher's Reports are due as required.
- e. Implement the After-School Program Assessment System utilizing the evaluation procedures of the *National Institute of Out of School Time*.
- f. Take corrective action, within ten (10) days or as specified by LCCP to remedy any deficiencies deemed by LCCP to be adversely affecting LCCP's adherence to its compliance obligations.
- g. Permit LCCP staff or its designees to conduct periodic on-site visits to the City's program to observe, interact with staff, and review any documentation pertaining to the City's compliance with this Contract.
- h. Issue invoices according to federal regulations governing 21CCLC funding for payment and reimbursement of grant funds. Invoices will be received in the LCCP by the twentieth (20th) of month following expenditure of funds. Funds will be expended at a consistent level throughout the year. All invoices shall be dated and be signed by the City's Director; and
- i. Perform such other tasks and/or provide such other information and documentation as may be required by the LCCP or the Department.

2. THE LCCP hereby agrees to:

- a. Monitor and evaluation the City's compliance with the terms of this Contract.
- b. Monitor the performance of the City's program, including fiscal management, and all other data detailed in written reports and site visits; and
- c. Provide technical assistance and training to the City.

3. **COMPENSATION.** LCCP agrees to pay the City an amount not to exceed One Hundred and Fifteen Thousand (115,000.00) for the performance of the above services. The City will invoice LCCP in accordance with the City's prepared budget, as defined in the *2013 21CCLC Work Plan & Budget*, a copy of which will be attached as *Attachment A* upon approval from the Department, and incorporated herein by reference. LCCP shall not be required to pay any invoice unless and until it receives the funds applied for from the Department. Payment for reimbursement will be made within thirty (30) days of receipt of each invoice issued by the City.
4. **TERM.** The term of this Contract shall commence on the 1st day of January 2013 and terminate on the 31st day of December 2013, unless earlier terminated as set forth in paragraph seven (7) of this Contract.
5. **CITY'S CONTACT PERSON.** Dick Berry, Director of Cheyenne Office of Youth Alternatives, 1328 Talbot Court, Cheyenne, Wyoming 82001.
6. **PROOF OF INSURANCE.** City provides liability coverage in accordance with the *Wyoming Governmental Claims Act (WGCA)*. A certification of such coverage will be provided to LCCP.
7. **TERMINATION.** If, through any cause, the City shall fail to fulfill in a timely and proper manner, its obligations under this Contract; or if the City violates any of the covenants, agreements, or stipulations of the Contract; LCCP may terminate this Contract if such default or violation is not corrected within thirty (30) days following City's receipt of any notice of a violation issued by LCCP.
8. **CHANGES.** By mutual written agreement, LCCP and the City may from time to time amend the Scope of Services to be performed by the City under this Contract.

9. **CONFLICT OF INTEREST.** No officer, member nor employee of the LCCP who exercise any functions or responsibilities in the review or approval of the Contract or the City's performance of its obligations hereunder shall participate in any decision relating to this Contract, which affects his or her personal interest or the interest of any corporation, limited-liability company, partnership, or other business entity in which the office, member or employee has any direct or indirect financial interest.
10. **FEDERAL AUDIT REQUIREMENTS.** Each party understands that if more than five-hundred-thousand dollars (\$500,000) in federal funds from all sources are expended, the parties are required to conduct a single-audit as required by *Office of Management & Budget (OMB) Circular A-133*.
11. **CONFIDENTIALITY.** Nothing in this Contract shall be deemed to require the parties to release any information that is considered confidential by state or federal law.
12. **INDEMNIFICATION.** Each party agrees to be responsible for any losses, claims, damages, injuries, demands and causes of action resulting from that party's negligence. The City does hereby reserve all immunities and defenses provided under the *WGCA*.
13. **CERTIFICATION REGARDING DISBARMENT AND SUSPENSION.** By signing this Contract, the City certifies to the best of its knowledge and belief that it and its principles are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any federal department or agency.
14. **EQUIPMENT.** If the City uses grant funds under this Contract to purchase any piece equipment and the Contract is terminated for breach, the piece of equipment shall be returned to the LCCP within thirty (30) days following termination of this Contract. All purchases remain property of LCCP and return may be requested.

15. CERTIFICATION OF GOOD STANDING. The City shall provide a *Certification of Good Standing* verifying the City's compliance with the unemployment insurance and worker's compensation laws of the State of Wyoming to LCCP prior to performing work under this Contract.

16. COMPLIANCE WITH LAWS. The parties agree that they will perform their obligation as provided within this agreement in accordance with all applicable laws and ordinances.

17. GOVERNMENTAL IMMUNITY. The City expressly reserves the right to evoke governmental immunity for any claims arising out of this agreement pursuant to *WGCA, Wyoming Statue 1-39-101 et seq.*

In Witness Whereof, the LCCP and the City have executed this Contract as of the date first written above.

Laramie County Community Partnership, Inc.
By:

Cheyenne Office of Youth Alternatives
By:

Chris Wiederspahn, Board President

Mayor

Date

Attest:

City Clerk

PLEASE SIGN IN BLUE INK.